

22. 9:01 AM CASE NUMBER: C25-02210
CASE NAME: HERMILIA VARGAS VS. JOHN DOE
***HEARING ON MOTION FOR DISCOVERY QUASH DEPO SUBPOENA FOR PROD OF BUSINESS RECORDS**
FILED BY: VARGAS, HERMILIA
TENTATIVE RULING:

Plaintiff Hermila Vargas ("Plaintiff") filed a motion to quash various subpoenas on April 29, 2026 (the "Motion to Quash"). The Motion to Quash was set for hearing on August 10, 2026. The motion is opposed.

Background

The Motion to Quash seeks an order quashing twelve separate subpoenas (the "Subpoenas") directed to various of Plaintiff's medical providers as well as seeking workers' compensation related records (the "Records"). See Motion to Quash, p. 2.

Analysis

Although it appears that copies of the subject Subpoenas were attached as part of the opposition papers, it was the moving party's obligation to proffer a proper supporting declaration with copies of those and the necessary foundation underpinning its request for relief as to those Subpoenas. Although the Notice of Motion filed April 29, 2026 refers to a "Declaration of Mitch Oviedo," no such declaration was filed with the moving papers. The Court has no such pleading filed on the docket with the moving papers.

The Separate Statement filed by the moving party did not contain a verbatim recitation of the document requests contained in the Subpoenas.

The Court is not inclined, at this stage, to embark on making findings and rulings on the individual requests at issue given the above-described issues.

In the exercise of its discretion, rather than deny the motion outright, the parties are directed to parties to discuss possible resolution of the underlying issue.

Disposition

The Court finds and orders as follows:

- 1. PARTIES TO APPEAR.**

23. 9:01 AM CASE NUMBER: C25-03108
CASE NAME: DONNA WAGNER VS. TODD JERMAN
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS, SET 1**
FILED BY: WAGNER, DONNA B.
TENTATIVE RULING:

Plaintiff Donna B. Wagner ("Plaintiff") filed a Motion to Compel Further Reponses to Special Interrogatories, Set One, and Requests for Production of Document, Set One, on May 5, 2026 (the

“Motion to Compel Further Responses”). The Motion to Compel Further Responses was initially set for hearing on November 16, 2026.

Upon the stipulation of the parties, the hearing date was advanced to August 10, 2026 and the discovery dispute was set for an Informal Discovery Conference (“IDC”) on June 30, 2026. See Stipulation and Order filed June 18, 2026.

The Court and parties conferred regarding the discovery items in dispute at the IDC on June 30, 2026. Certain agreements were reached, including an agreement to conduct a site inspection in conjunction with efforts to address the subject discovery/investigation issues. The Court also directed the parties to confer further and advise as to the items that remain in dispute by filing a Joint Statement.

The parties filed the Joint Statement on August 3, 2026 that details the particular discovery requests that remain in dispute, as detailed further below.

The Court notes that the Joint Statement contains four “unresolved issues” which it purports are to be decided by the Court. While some of those issues may be relevant considerations as relates to some of the remaining disputed discovery requests, the Court does not purport to address these “issues” as framed at page 6 of the Joint Statement. The Court reviews herein the remaining disputed discovery requests identified and makes findings and rulings as to each.

Background

The discovery requests which remain at issue, as addressed in the Joint Statement (collectively, the “Remaining Discovery Requests at Issue”) are the following:

1. Special Interrogatories (Set One) (the “**SROGs**”) to defendant Costco Wholesale Corporation (“Costco”) **Nos. 8 and 10.**
2. Request for Production of Documents (Set One) (the “**RPDs**”) to Costco, **Nos. 3, 7, 14, 15 and 17;** and

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1).

When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Having considered the moving papers, including the Separate Statement, the opposition papers, the Joint Statement and any further pleadings submitted, the Court makes the following findings and orders

as to the Remaining Discovery Requests at issue:

Remaining Discovery Requests at Issue

SROGs – Nos. 8 and 10.

SROGs, No. 8.

The supplemental response to this interrogatory provides some information about the type of the camera that is the subject of the interrogatory. However, the response is incomplete as to all of the particulars requested by the interrogatories (such as the “model,” “year of manufacture,” and “serial number”).

The responding party contends that “[f]urther details of the model are irrelevant to this matter (do not go towards liability/damages) and are protected trade secrets,” amongst other objections.

While some information about the model of the camera may be reasonably calculated to lead to the discovery of admissible evidence, the request is overbroad. Arguably, knowing the make and model might could, in theory, aid in the ability to know what control or viewing software would permit viewing of any video of the subject incident. However, as discussed in the Joint Statement, the only existing video of the incident is in an “.avi” file type and has been produced by the responding party, Costco.

Moreover, the Court does not find that information about the “year of manufacture” or the particular “serial number” of the camera would have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue or lead to the discovery of any evidence related to any such relevant facts.

In light of the foregoing, the Court need not consider the further objections, including the trade secret objection and related objections.

While resolution of the issue regarding production of the video captured might have helped resolve this matter, the Court focuses on the request at issue, at this stage.

Accordingly, the request to compel a further response to this interrogatory is **DENIED**.

SROGs, No. 10.

This interrogatory asks the responding party to “describe in as much detail as possible the job duties of YOUR employee, Defendant TODD JERMAN, as of the date of the INCIDENT.”

Costco’s supplemental response contains a very general description of the job position (“The General Manager oversees the operation of the specific membership warehouse with direct responsibility for complete operations of the warehouse.”). See Costco’s Responses to SROGs, No. 10, Declaration of I. Hooshie Broomand filed July 28, 2026 (“Broomand Decl.”), **Exhibit C**. The amended supplemental response goes further to state various categories of job functions that a General Manager has (“The General Manager is responsible for general oversight of operations and running of facility including: (1) General oversight of hiring and firing of Employees; (2) General oversight of employees’ performance and implementation of policies; (3) General interaction with employees while present; (4) Assists in staff meetings; (5) Generally, ensures customer satisfaction; (6) Assists in smooth operation of facility; (7) Attends meetings at corporate headquarters; (8) Assist with front end duties as necessary; (9) Assist in other warehouse areas as necessary.”). *Id.*

These responses are inadequate. The response, as framed, refers to the “General Manager” and not defendant Todd Jerman. If the response is that “Todd Jerman was a General Manager with Costco and his job functions as a General Manager were ...,” then the response should say so. The generalized

reference to some hypothetical “General Manager” is non-responsive and evasive.

Answers to interrogatories must be complete and responsive. *Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783. The answers should reveal all information then available to the responding party. *Id.* at 782. A party “cannot plead ignorance to information which can be obtained from sources under his control.” *Id.*

The stated boilerplate objections are **OVERRULED**. The motion is **GRANTED** as to this interrogatory and a further response shall be made as ordered below.

RPDs – Nos. 3, 7, 14, 15 and 17

RPDs, No. 3.

This document production request seeks “All DOCUMENTS depicting the retail sales floor layout plan of the SUBJECT PREMISES as configured on the date and time of the INCIDENT, such as blueprints, specifications, photographs and drawings, and including the locations of display cases and surveillance cameras.”

The supplemental response by Costco stated that “Responding party has complied with this request and has produced surveillance video footage of the incident...” See Costco’s Responses to RPDs, No. 3, Broomand Decl., **Exhibit C**. The amended supplemental response indicates that “Responding party further agrees to produce the Floor Plan for the Subject Costco dated June 24, 2024,...” *Id.*

Neither of the written responses is code compliant. An assertion that a party “has complied” is not what a responding party is obligated to state. Nor does a proper code-compliant response consist of describing what the responding party “agrees to produce.” Code Civ. Proc. § 2031.210(a); see *Pollock v. Superior Court* (2023) 93 Cal.App.5th 1348, 1357 (discussing nature of code compliant response to document demand); see also Weil & Brown, et al., *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2025), § 8:1469. A compliance statement must indicate that the party “will comply” with the particular demand and make the other statements required by Code of Civil Procedure section 2031.220. Code Civ. Proc. §§ 2031.210(a) and 2031.220.

For that reason alone, the Court grants the motion.

Whether actual production has been made of any responsive documents is another issue. Following the IDC, Costco indicates that it produced a floor plan/layout of the subject store “closest in time” to the date of the incident. If this is the only responsive document in its custody, control or possession, then the responding party has satisfied its production. If, in conjunction with a further code-compliant response, it has custody, control or possession of any additional responsive document, it must produce them.

The requesting party observes in the Joint Statement that “the produced floorplan lacks dimensions or indications of space and distance” and suggests that the parties “reach stipulations as to the distances within the retail floor areas,” observing that “the locations of surveillance video cameras are known exclusively to COSTCO and must be provided in response to this Request.” That misses the point. The responding party is under no obligation to create or augment any existing floor plan or diagram. If doing so as a meet and confer compromise could have resolved the dispute, so be it. But that is not meritorious argument about the scope of Costco’s production obligation and its compliance with such obligations.

Accordingly, the motion is **GRANTED** as to this request and a further response shall be made as ordered below.

The stated objections are **OVERRULED** except as to the stated privilege objections. The responding party

is ordered to make a further response to this document request without the overruled objections and to produce any further responsive documents. If any responsive documents are redacted or withheld pursuant to any privilege objection(s), the responding party shall provide a detailed privilege log. The privilege log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPDs, No. 7.

Costco indicates in the Joint Statement, that "Plaintiff's Motion to Compel does not address this Request." Costco is correct. RPDs, No. 7 was not included in the moving party's Separate Statement filed in support of the motion. See Separate Statement filed May 5, 2026. Accordingly, the Court makes no ruling on this discovery item.

RPDs, Nos. 14 and 15.

RPDs, Nos. 14 seeks production of "All DOCUMENTS that constitute or refer to YOUR policies, procedures, guidelines, or protocols for responding to, documenting, investigating, or reporting customer accidents or injuries occurring at the SUBJECT PREMISES in effect at any time within the two (2) years before the INCIDENT." RPDs, Nos. 15 seeks production of "All DOCUMENTS concerning YOUR policies, procedures, guidelines, or protocols for record-keeping related to customer accidents or injuries at the SUBJECT PREMISES during the two (2) years before the INCIDENT."

The responses to both of these requests are the same. The initial responses consisted of objections. None of the supplemental responses are code-compliant. Pointing to "[a]dditional documents withheld" or describing one document that the responding party "agrees to produce" is not a code-compliant response for the same reasons discussed above in connection with RPDs, No. 3.

Accordingly, the motion is **GRANTED** as to these requests and further responses shall be made as ordered below.

The stated objections are **OVERRULED** except as to the stated privilege objections. The responding party is ordered to make further responses to these document requests without the overruled objections and to produce any further responsive documents. If any responsive documents are redacted or withheld pursuant to any privilege objection(s), the responding party shall provide a detailed privilege log. The privilege log need not designate documents generated by the responding party's attorneys which may be withheld without further disclosure, subject to any further court order.

RPDs, No. 17.

This request seeks "All DOCUMENTS concerning any prior incidents, accidents, or injuries involving product-moving equipment at any COSTCO store at any time within the five (5) years before the INCIDENT."

As framed, the Court finds that the request is overbroad and not reasonably calculated to lead to the discovery of admissible evidence. Costco's objections to this effect are **SUSTAINED**. This broad-brush demand would, as written, extend to any Costco store nationwide and cover a multitude of "incidents, "accidents," having no similarity to or other bearing on the accident at issue in this case.

As such, the request seeks production of an extraordinarily wide range of documents that would not have any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the particular claims at issue or lead to the discovery of any such evidence. An appropriately framed and more limited discovery request might well seek appropriately discoverable "similar incident" documents, and the Court discussed with the parties during the IDC the possible scope

of a smaller, agreed upon production. However, a court, in connection with deciding whether to compel a further response, has no obligation to redraft a party's discovery requests in order to limit it to a proper scope. See *Deaile v. General Telephone Co. of California* (1974) 40 Cal.App.3d 841, 851; see also *Ryan v. Superior Court of Los Angeles County* (1960) 186 Cal.App.2d 813, 817 ("...if the interrogatories are so framed as to require the disclosure of relevant as well as irrelevant matter, the trial court in the exercise of its discretion may refuse to order such interrogatories answered."). The Court finds that the moving party has failed to set forth specific facts showing good cause justifying the discovery sought by the demand. Accordingly, the request to compel a further response to this inspection demand is **DENIED**.

Sanctions

When properly requested, monetary sanctions are mandatory against the party losing on a motion to compel further responses to discovery requests unless the court finds "substantial justification" for that party's position or other circumstances making the sanction "unjust." Code Civ. Proc. §§ 2030.300(d) and 2031.310(h); see *Weil & Brown*, § 1920.

In addition, a failure to make full and complete code compliant responses constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

The Court has considered and denies the imposition of sanctions against either the moving or responding party. Costco's objections to certain of the requests were substantially justified, as discussed above. As to other responses, the objections were without merit. The Court is also mindful of the substantial meet and confer efforts made by both sides to resolve the matters overall. Therefore, the Court concludes that sanctions are not appropriate or justified. However, the Court reserves jurisdiction to consider the issue of sanctions further and to impose sanctions if there is non-compliance with the orders made herein by the Court.

Disposition

The Court further finds and orders as follows:

1. The Motion to Compel Further Responses is **GRANTED IN PART** and **DENIED IN PART**, as set forth further above.
2. As to discovery requests to which further responses were ordered, Costco shall serve verified further amended responses to such discovery requests within **thirty (30) calendar days** of notice of entry of this order, in accordance with the further orders and directives set forth above.
3. The Court shall issue the order after hearing.